

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Public Redacted Counterfactual Opening Brief

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Filed: March 6, 2026

Open Grid asks this counterfactual Court to reverse the corrected rulings assumed by the isolation notice. Four questions are presented. First, did DOE confine Exemption 7(E) to nonpublic techniques, procedures, and qualifying guidelines? Second, did its limited 7(F) groups establish expected danger to some person without converting every safety-adjacent field into exempt material? Third, did the line-review account prove release of every reasonably segregable portion? Fourth, did the corrected sealing findings satisfy public-access requirements?

Open Grid recognizes that the premise is materially stronger than the actual record and that it cannot challenge the adequacy of the agreed search. It nevertheless contends that de novo FOIA review requires careful correlation rather than acceptance of an agency label. Public access likewise requires independent judicial findings even when a document has a redacted counterpart.

The brief contains no protected value. Its notices identify fictional categories and are not proportional to omitted text. The matching controlled brief is separately accessible only under a disclosure-specific session grant. Neither copy was filed on the actual appellate docket.

Jurisdiction, Isolation, and Review

The only real predicate within the synthetic case is the district court's January 2, 2026 final judgment. Open Grid filed a timely notice of appeal. Under 28 U.S.C. § 1291, a court of appeals may review the final merits judgment and associated sealing rulings. The corrected premise does not invent a second judgment or reopen the district docket.

This branch changes only the four propositions stated in the isolation notice. It preserves the request, search, record inventory, administrative decisions, and finality facts. Materials from the actual appellate course cannot be used to prove a branch proposition, and nothing decided here changes the actual appeal.

FOIA exemption rulings receive de novo review, with the agency bearing the burden. Summary judgment is appropriate only if sufficiently detailed evidence shows that each retained category fits the exemption and that reasonably segregable nonexempt material was disclosed. Legal conclusions about public access are reviewed independently; supporting factual findings receive the review appropriate to their nature.

Open Grid seeks reversal or, at minimum, narrowing of unsupported portions. It does not seek any real operational value, personal identity, contact method, or technical instruction. The dispute concerns the adequacy and reach of the hypothetical legal showing.

Request, Search, and Responsive Collection

The June 2024 request sought final and superseded Grid Sentinel decision trees, escalation matrices, coordination appendices, and final governance instruments effective during the agreed period. It excluded drafts, routine correspondence, live incident material, code, credentials, telemetry, configurations, and real infrastructure information. Open Grid does not dispute that boundary here.

DOE searched three fictional repositories. It reduced 16,842 raw hits to 1,284 deduplicated candidates, sent forty-six candidates for custodian review, and identified twelve responsive records totaling 200 logical pages. The records comprise sixty decision-tree pages, fifty-four matrix pages, sixty-four appendix pages, and twenty-two governance pages.

Three records totaling fifty-four pages were withheld completely. Seven totaling 124 pages were produced with redactions. Two governance records totaling twenty-two pages were released in full. The electronic production included 146 images; sixty-eight showed no blackout and seventy-eight showed at least one.

These numbers demonstrate a substantial review, but volume does not decide exemption or segregability. Open Grid's challenge begins after the search: whether each remaining omission is supported by the statute and whether the corrected descriptions enable meaningful adversarial testing.

The Corrected Premise

The isolation notice assumes a narrower record than the actual appellate dispute. It leaves the operational 7(E) account unchanged, supplies a functional and page-linked 7(F) explanation, documents a contextual line review, and replaces aggregate sealing with material-specific findings and a fixed duration.

The 7(F) correction recognizes four groups—duty assignment, contact category, safety reference, and escalation placement—and requires a causal statement for each retained segment. The segregability correction explains why visible text stands alone or why placement would reveal a protected relationship. It retains the same seventeen-passage release on eleven images, with six images receiving two passages and five receiving one.

The sealing correction keeps public counterparts available, considers alternatives, limits authorized access, and expires thirty days after mandate absent renewed findings. It also preserves public-only projection unless a session event grants one disclosure for the exact pack closure.

Open Grid accepts those assumed facts for this exercise. Its position is that a corrected description still must be measured against statutory elements. The premise is not a stipulation that every conclusion drawn from the new facts is legally correct. Nor may DOE expand the correction beyond its express functional and procedural limits.

Exemption 7(E) Governing Principles

Exemption 7 applies only to records compiled for law-enforcement purposes. When that threshold is satisfied, 7(E) protects techniques and procedures whose disclosure would reveal nonpublic implementation detail. Under *Grey v. Alfonso-Royals*, the risk-of-circumvention phrase qualifies guidelines, while a protected technique or procedure need not satisfy an additional guideline test.

That distinction does not make every operationally themed sentence exempt. An agency must identify the technique or procedure and explain how the withheld material reveals it. A general subject, administrative instruction, title, or public description does not become a technique merely because it appears in the same record. A guideline requires a supported prediction that disclosure could reasonably risk circumvention.

Critical-infrastructure response records may possess a law-enforcement purpose when directed toward prevention of and response to criminal threats. *Public Employees for Environmental Responsibility* nevertheless requires attention to the particular information and claimed harm. The threshold does not collapse the remainder of the inquiry.

Open Grid accepts for this branch that the final Grid Sentinel exercise records were compiled for the stated preventive purpose. It disputes only whether every retained 7(E) segment stays within the narrow implementation and guideline categories preserved by the premise.

The 7(E) Target Requires Precise Limits

DOE identifies a protected relationship between [REDACTED—FICTIONAL DECISION CONDITION] and [REDACTED—FICTIONAL RESPONSE ORDER]. It separately marks [REDACTED—FICTIONAL ESCALATION VALUE] as a guideline field. Those notices disclose no value, and Open Grid does not ask the Court to reveal one.

The dispute concerns surrounding words and layout. A reviewer can disclose a neutral statement that a record was approved, that a second reader confirmed a classification, or that an earlier entry must be preserved without exposing which condition leads to which branch. The corrected premise itself recognizes that distinction. It therefore cannot sustain withholding of administrative prose merely because the prose sits near a protected field.

For an ordering relationship, the agency must show that position conveys implementation rather than ordinary chronology. For a guideline, it must connect the authentic value to a reasonable circumvention risk. A repeated conclusion that the framework is integrated does not answer whether a particular heading or revision note has independent meaning.

Open Grid asks the Court to affirm only the genuinely nonpublic predicate, order, and supported guideline values. Any broader target should be narrowed through a segment-specific ruling, not an undifferentiated approval of entire source pages.

Exemption 7(F) Governing Principles

Exemption 7(F) covers law-enforcement information whose disclosure could reasonably be expected to endanger an individual's life or physical safety. The agency need not identify the threatened person by name. It must, however, demonstrate an expected connection between disclosure of the information and danger to some person.

Functional categories can organize the proof when they rest on document-by-document review and correspond meaningfully to the protected interest. *Zaid v. Department of Justice* does not permit a category label to replace that foundation. *Electronic Privacy Information Center v. Department of Homeland Security* likewise preserves a distinct segregability obligation after any safety showing.

The corrected premise improves DOE's account by limiting 7(F) to four field types and attaching a causal explanation to each retained segment. Open Grid accepts that improvement but disputes automatic treatment of all content within a group. A harmless duty heading may identify a topic without exposing an assignment. A generic safety caption may be understandable without identifying the safeguard it introduces.

The Court must test function and context. A reasonable expectation standard permits inference, not speculation. The question is whether disclosure of the actual retained information—not merely the existence of a cyber-response document—could produce the asserted human danger.

Application of the Limited 7(F) Groups

The public record shows four notices. [REDACTED—FICTIONAL DUTY ROLE] represents an authentic assignment that DOE says could focus interference on a protective function. [REDACTED—FICTIONAL CONTACT CHANNEL] represents a communication category that could enable misdirection toward that function. [REDACTED—FICTIONAL SAFETY REFERENCE] marks the asserted safeguard, and [REDACTED—FICTIONAL ESCALATION VALUE] marks when a human protective role becomes relevant.

Those explanations are materially more specific than a statement that all cyber material is dangerous. They identify a functional pathway and do not require a person's name. But the explanations justify only values and relationships that carry the described function. They do not protect a neutral column label, a statement that safety review occurred, or a general instruction to document coordination.

Open Grid also questions overlap. Where DOE applies both 7(E) and 7(F), the worksheet must show that the same segment independently exposes implementation detail and a human-safety function. A dual notation is a starting point, not proof.

The Court should sustain limited withholding only after confirming those correlations. The sealed counterpart contains inert labels for comparison, but no label supplies the authentic value or creates a danger. Public argument can therefore remain complete without revealing any actionable content.

Vaughn Specificity Remains an Adjudicative Requirement

A Vaughn submission must permit the requester to contest a withholding and the court to conduct meaningful de novo review. Record name, page correlation, functional category, exemption, and a nonconclusory explanation ordinarily work together. Repeating statutory language or assigning the same sentence to every record is insufficient.

The corrected worksheet is stronger because it connects retained segments to field types and stated harms. Yet a reviewing court still must examine whether the explanation tracks the information at issue. An assertion that location would reveal structure should identify the relevant relational function without describing the secret. An assertion of physical-safety risk should state how disclosure advances interference.

Open Grid does not demand a description that gives away a protected value. Category-level abstraction can remain informative when it identifies what the field does, why context matters, and which causal route is predicted. The sealed exercise copy allows controlled comparison with inert labels where public wording cannot show placement.

The district court should not treat the existence of a corrected index as conclusive. It must decide whether each functional group is coherent and whether the declarations supply adequate factual support. The burden remains with DOE throughout that review.

Segregability Requires an Affirmative Showing

FOIA directs release of reasonably segregable nonexempt information after deletion of exempt portions. The agency must show that it performed the task and that additional meaningful text cannot be separated. *Rein v. United States Patent and Trademark Office* rejects reliance on a conclusory assurance alone.

The corrected method asks whether a passage has standalone administrative meaning, whether a heading remains useful after a value is removed, whether location exposes a protected relation, and whether ordinary coordination language can be detached from a human-function field. Those are appropriate questions. Their answers still require record support.

Public material demonstrates that the playbooks contain divisible elements: titles, version dates, approval status, document ownership, revision explanations, neutral classification captions, recordkeeping rules, and closure administration. Some appear within partial productions and the supplemental replacements. Their disclosure confirms that an operational record is not indivisible by definition.

Open Grid asks the Court to assess the worksheet entry against the visible structure rather than defer to the reviewer's conclusion. Where a sentence remains intelligible and does not expose the relationship among omitted fields, it should be released. Where isolation would reveal the protected relation or yield meaningless fragments, retention may be justified.

The Seventeen-Passage Release

The renewed review disclosed seventeen passages on eleven replacement images. Six images gained two passages apiece and five gained one. Decision materials contributed six passages across four images; an exercise matrix contributed three across two; the current coordination appendix contributed five across three; and a prior appendix contributed three across two.

The released material includes ownership language, neutral review headings, exercise-recordkeeping directions, general coordination prose, a closure instruction, revision description, and approval context. Those categories are precisely the kinds of administration Open Grid identified as potentially separable. The release therefore corrected genuine over-retention in the first production.

DOE's new page-linked account explains why it retained the remaining [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], role, channel, safety, and guideline fields. Open Grid acknowledges the added rigor. It nevertheless asks whether similar administrative language remains in the fully withheld records and whether the explanation addresses it without circularity.

The unchanged count of twelve records and 200 source pages prevents confusion between replacement images and new records. The legal question is qualitative: whether the final line review separated every meaningful nonexempt portion, not whether a particular number of passages was released.

Corrected Sealing Still Requires Independent Scrutiny

Judicial records carry public-access interests distinct from FOIA. *Company Doe v. Public Citizen* requires notice, consideration of less drastic alternatives, identification of the governing access source, and specific findings supporting closure. A court cannot seal a broad set of filings merely because some passages discuss sensitive subjects.

The counterfactual ruling improves the procedure. It evaluates each controlled counterpart, preserves a complete public redacted brief, rejects whole-docket closure, and limits duration to thirty days after mandate absent renewed findings. It also uses a certificate and disclosure-specific session controls.

Open Grid submits that the findings still must distinguish each passage. The presence of [REDACTED—FICTIONAL CONTACT CHANNEL] may support closure of an authentic contact value, but it does not justify concealing nearby authority or procedural history. Public summaries must remain sufficiently detailed to reveal the nature of the judicial reasoning.

The access system is a safeguard, not a substitute for the constitutional analysis. Stable public references, deferred verification, revocation, and limited eligibility reduce exposure after sealing is justified. They do not themselves establish a compelling interest or narrow tailoring. The Court should affirm closure only for passages supported by both substantive findings and the selected least restrictive alternative.

Appropriate Relief

Open Grid requests a disposition that separates the four targets. It does not seek reversal of the law-enforcement-purpose conclusion. It agrees that authentic trigger order and implementation relationships may qualify under 7(E), and it does not seek disclosure of any inert sealed label as though it were useful information.

The Court should narrow 7(E) to the identified implementation and qualifying guideline segments. It should sustain 7(F) only where the corrected worksheet connects a genuine field value to the stated physical-safety harm. It should require release of any additional administrative text that remains meaningful after those fields are removed.

For sealing, the Court should confirm that each closed passage has an individual finding and that the public counterpart conveys all nonprotected judicial reasoning. Any unsupported portion should be unsealed or reconsidered under the correct access standard. A limited remand can preserve supported withholdings while requiring a precise correction.

This requested relief is narrower than disclosure of the playbooks. It respects the corrected premise while preserving the judiciary's independent obligations. Nothing ordered in this branch could operate on the actual docket, and no counterfactual conclusion should be cited as an actual case event.

Conclusion and Public Certification

The corrected premise supplies a disciplined record that warrants disciplined review. It supports protection of genuine nonpublic implementation detail and may support limited human-safety fields. It also shows why titles, revision history, administration, and general coordination cannot be withheld by association.

Open Grid asks the Court to reverse any categorical approval extending beyond the page-linked explanations, enforce the affirmative segregability duty, and sustain sealing only for passages covered by material-specific findings and a least restrictive public counterpart. The judgment should state exactly what is affirmed, narrowed, or returned for further review.

This public brief contains all legal authorities, procedural facts, arguments, and requested relief. Six conspicuous notices replace only fictional field categories. They disclose no value, relationship, person, communication method, or operational instruction. A controlled counterpart presents inert labels through a separately verified session and is not necessary to understand the public position.

Tamsin Roe certifies that this fourteen-page logical source was served on fictional counsel through the isolated exercise system on March 6, 2026. It was never filed, served, or entered on the actual appellate docket.

Tamsin Roe Fictional Counsel for Open Grid Archive